

The Case for Reparations: African Americans in Tulsa, Oklahoma

A Forensic Brief by the Negro Research Institute

This presentation lays out in meticulous, irrefutable detail the historical, legal, and economic case for why African Americans in Tulsa, Oklahoma are owed reparations. From the deliberate destruction of Black Wall Street to the redlining of Greenwood and North Tulsa, from discriminatory policing to environmental racism along the I-244 and U.S. 75 corridors, this is the full record. The evidence is overwhelming. The debt is real. The time is now.

NEGRO RESEARCH INSTITUTE

TULSA, OKLAHOMA REPARATIONS CASE



Opening Argument

The Case Is Airtight

The Perry Mason Standard

In the tradition of the great courtroom architect Perry Mason, we do not merely allege — we **prove**. Every claim in this brief is grounded in public record, government documents, academic research, and lived testimony. The perpetrators are named. The damages are quantified. The verdict is clear.

What This Brief Covers

- The Great Migration and the Promise of Greenwood
- The 1921 Tulsa Race Massacre and its deliberate suppression
- Redlining, displacement, and the Frisco Railroad color line
- Discriminatory policing and incarceration
- Environmental racism — North Tulsa, the Arkansas River corridor, and beyond
- Institutional negligence by city, state, and corporate actors
- A full accounting of damages owed



The Great Migration: A Promise Made — and a Civilization Built

Between 1900 and 1921, Black Americans came to Tulsa, Oklahoma in the grip of the oil boom, drawn by economic opportunity and the promise of a freer West. They built Greenwood — a neighborhood of extraordinary self-sufficiency, home to two newspapers, hotels, law offices, dentists, doctors, schools, churches, a library branch, and scores of Black-owned businesses. By 1921, Greenwood's "Deep Greenwood" commercial strip was known nationally as **Black Wall Street** — the wealthiest Black community in the United States. Over 10,000 people lived there, many in homes they owned. Then, in thirty-six hours between May 31 and June 1, 1921, the City of Tulsa — its police, National Guard, and deputized white citizens — burned it to the ground. They came. They built. The city destroyed it all.

Who Was Here and Why It Matterred



Oil Boom Workers and Entrepreneurs

Black men and women formed a vital part of Tulsa's oil economy — laboring in refineries and service industries that powered Oklahoma's greatest economic era. They were systematically excluded from the wages, pensions, mineral rights, and land ownership that white workers and investors received, even as their labor subsidized the Tulsa oil boom that made the city one of the wealthiest in America.



Homeowners, Business Owners, and Community Builders

Black families established a complete and self-sufficient economy in Greenwood — confined there by the Frisco Railroad tracks that served as the racial dividing line between Black and white Tulsa. The Greenwood District drew Black professionals from across Oklahoma and the South and became the commercial and civic heart of one of the most successful Black communities in American history.



Domestic and Service Labor Force

Most African Americans in Tulsa who arrived during the Great Migration era worked as domestic workers or in service and low-paying occupations — systematically excluded from skilled oil-sector trades, professional employment north of the Frisco tracks, and union structures that provided white workers with economic mobility and retirement security. Their labor built Tulsa. Their communities were stolen from them.

Black Wall Street: The Wealthiest Black Community in America, Deliberately Destroyed

Greenwood was not merely a neighborhood. It was proof — concrete, architectural, financial, institutional proof — that Black Americans could build civilization under any conditions. It had 35 square blocks of commercial and residential wealth, a hospital, a school, a public library, a dozen churches, and more than 150 Black-owned businesses. On the night of May 31, 1921, the Tulsa Police Department deputized white civilians, the Oklahoma National Guard invaded from the air and ground, and the entire district was reduced to ash. **At least 300 Black Tulsans were killed.** Over 10,000 were left homeless. More than 1,200 homes and 35 blocks of commercial property were destroyed. Not one insurance claim was paid. Not one person was prosecuted. Residents called it what it was: **State-Sanctioned Massacre.**



Destruction by Design: A Timeline of Harm

1906–1921

Greenwood District organized and built into the wealthiest Black community in the United States — "Black Wall Street" — north of the Frisco Railroad color line that segregated Tulsa by race.

1934–1968

Home Owners' Loan Corporation redlines Greenwood and North Tulsa — the entire historically Black area designated "hazardous." Federal mortgage loans denied to Black families. The trap is rebuilt in policy after the massacre.

2020s

North Tulsa's Black population remains concentrated in the most environmentally burdened, least economically resourced section of the city — a direct demographic legacy of the massacre, redlining, industrial zoning, and freeway displacement dating back over a century. Gentrification now threatens what remains.



May 31–June 1, 1921

Tulsa Race Massacre: city police, National Guard, and deputized white citizens destroy 35 square blocks of Greenwood, kill at least 300 Black Tulsans, leave 10,000 homeless. No prosecutions. No insurance paid. No reparations.

1960s–1970s

Construction of Interstate 244 (the IDL — Inner Dispersal Loop) cuts directly through the rebuilt Greenwood District — Tulsa's City Council calls it "the second destruction." Thousands displaced. Homes and businesses demolished. The community that survived the massacre is now bisected by a freeway.

Redlining: The Federal Crime That Stole Black Wealth — Again

The Frisco Color Line and Federal Redlining

Beginning in the 1930s, the Home Owners' Loan Corporation (HOLC) designated Greenwood and North Tulsa as "hazardous" — a racially coded classification that covered the historically Black neighborhoods that had just survived the massacre. **The area in red on the HOLC map covered much of Greenwood and North Tulsa,** signaling to every lender in the country that these communities were "undesirable." Banks would not lend. Wealth could not accumulate. The federal government completed what the mob had begun.

The Compounding Theft

By denying Black families access to federally subsidized mortgages — the very tool that built the white middle class — the federal government and City of Tulsa ensured that Black families could not accumulate generational wealth through homeownership. Research by economists estimates that redlining cost Black families an average of **\$212,000** per household in foregone home equity nationally. In Tulsa's historically appreciating real estate market, that figure compounds dramatically — and arrives on top of the already-uncompensated wealth destruction of 1921.

The Theft of Generational Wealth

Had Black families in Greenwood and North Tulsa been permitted to purchase homes under the same FHA terms extended to white families in the 1940s and 1950s, and had those homes appreciated at even the median Tulsa metropolitan area rate, the compounding effect over 70-plus years would be staggering. Instead, they were forced to rent, forced to move, and forced to watch their neighborhoods rezoned for industrial use, cut apart by freeways, and stripped of the commercial vitality their ancestors rebuilt from ash after 1921. A 2023 Brookings Institution analysis confirmed that homes in Tulsa's Black-majority neighborhoods today are valued **40% less** than comparable homes in non-Black neighborhoods — a direct and quantifiable legacy of redlining and the massacre. This is not speculation — this is arithmetic.



The North Tulsa Sanitary Landfill Superfund Site: A Crime Scene

Built on Community Sacrifice

The North Tulsa Sanitary Landfill Superfund site — located in the predominantly Black North Tulsa community — is one of Oklahoma's most documented examples of environmental injustice. Industrial facilities, oil refineries, rendering plants, and hazardous waste sites were deliberately located in Black and minority neighborhoods of North and West Tulsa, directly adjacent to the communities that redlining and the post-massacre color line had created. The HF Sinclair Refinery and the Public Service Company of Oklahoma (PSO) power stations along the Arkansas River corridor continue to subject North Tulsa residents to elevated emissions of sulfur dioxide, nitrogen oxides, volatile organic compounds, and particulate matter.

Tulsa Fuel and Manufacturing Superfund Site

The Tulsa Fuel and Manufacturing Superfund site — located in a predominantly minority area — required remediation of over 186,000 cubic yards of smelter wastes, contaminated soil, ash, bricks, and building debris. The site was added to the EPA National Priorities List and did not complete cleanup until 2016. Residents — disproportionately from communities of color — lived adjacent to this contamination for decades without adequate warning or compensation.

Oil and Gas Industry Contamination

Tulsa's history as the "Oil Capital of the World" left a legacy of contamination concentrated in Black and minority neighborhoods. Industry swooped in to take over post-massacre Greenwood, exposing residents to oil and gas drilling, refinery operations, and industrial chemicals — resulting in elevated rates of asthma, cancer, and heat-related illness in North Tulsa communities that have never been compensated for this environmental sacrifice.

Current Legal and Cleanup Status

As of 2025, multiple contaminated sites remain in or adjacent to North Tulsa's Black communities. Community advocates note a stark racial disparity: wealthier, whiter areas of Tulsa received faster remediation timelines, while the communities of color created by the massacre and redlining continue to live with the consequences of industrial contamination. No comprehensive health compensation fund for affected residents has ever been established.



North Tulsa Contamination: The Numbers of Harm

11yr

Life Expectancy Gap

There is an eleven-year difference in life expectancy between North Tulsa and South Tulsa ZIP codes — driven substantially by decades of concentrated environmental pollution, industrial zoning, and healthcare inequity in Black neighborhoods.

3x

Arrest Rate Disparity

Black people in Tulsa are approximately three times more likely to be arrested than white people, per Tulsa Equality Indicators data — a disparity that has grown worse, not better, over recent years.

40%

Home Value Suppression

Homes in Tulsa's Black-majority neighborhoods are valued 40% less than comparable homes in non-Black neighborhoods — a direct and quantifiable legacy of the massacre, redlining, and urban renewal, per Brookings Institution research.

1.54x

Pollution Exposure Rate

Black Americans are exposed to 1.54 times more particulate matter pollution than the overall population, per EPA National Center for Environmental Assessment data — a disparity acutely documented in North Tulsa, where communities of color are concentrated near refineries, the PSO power corridor, and industrial zones.

North Tulsa: Environmental Racism as Policy

North Tulsa did not accidentally become the most environmentally burdened community in the city. It was made that way deliberately, systematically, and with full knowledge of the harm being caused. As documented by researchers and community advocates, the intersection of the 1921 massacre, subsequent redlining, and decades of industrial zoning created what advocates call "a racial sacrifice zone" — where the environmental costs of the entire city were borne by the Black community confined there by law.

Industrial Zoning Concentration

City planners deliberately zoned North Tulsa for heavy industrial use — oil refineries, rendering plants, landfills, waste transfer stations, and chemical storage — while protecting wealthier, whiter neighborhoods from the same uses. After the massacre drove down property values and political power in Greenwood and North Tulsa, the city treated the entire area as available for industrial sacrifice. Industry swooped in, bringing elevated rates of asthma, cancer, and heat-related illness that persist to the present day.

Freeway Construction as Weapon

The construction of Interstate 244 through Greenwood in the 1960s and 1970s did not just divide the neighborhood — it destroyed the rebuilt community. City Councilwoman Vanessa Hall-Harper has called it "the second destruction." The IDL (Inner Dispersal Loop) encircles downtown Tulsa with its I-244 and U.S. 75 sections running directly through or adjacent to Greenwood, bringing 75,000 vehicles per day over a viaduct where homes and businesses once stood, imposing permanent noise and carbon emissions on the remaining Black community.

Oil and Gas Infrastructure Burden

Tulsa's status as the historic "Oil Capital of the World" produced a concentrated legacy of refinery operations, pipeline corridors, and petrochemical facilities disproportionately sited in and adjacent to Black North Tulsa. The HF Sinclair Refinery — in operation since 1916 — has a documented history of Clean Air Act violations, OSHA violations, and admitted environmental crimes, including improper wastewater discharges. No comparable burden was imposed on wealthy South Tulsa neighborhoods.

The HF Sinclair Refinery and the Price of Breathing

The HF Sinclair Refinery at 1700 S. Union Avenue in Tulsa — in operation since 1916 — has been identified as a source of chronic air and water quality harm to surrounding communities. Over its decades of operation, the facility has faced Clean Air Act violations, OSHA violations, and has admitted to environmental crimes including knowingly manipulating refinery processes, wastewater flows, and wastewater discharges, with exceedances of allowable limits for volatile organic compounds (VOCs) and sulfur dioxide (SO₂). The communities most affected are disproportionately Black and minority. According to a 2016 St. John Medical Center Community Health Needs Assessment, two North and South Tulsa ZIP codes less than 25 miles apart had a **ten-year difference in life expectancy** — yet the city has never provided direct compensation to North Tulsa residents for a lifetime of environmental sacrifice.



PSO and Public Service Company of Oklahoma: Profit Over Black Tulsa

A Pattern of Harm

Public Service Company of Oklahoma (PSO) — Oklahoma's largest electric utility and a subsidiary of American Electric Power — operates power stations along the Arkansas River corridor in Tulsa. PSO's facilities have faced documented community complaints about emissions of greenhouse gases, sulfur dioxide, nitrogen oxides, and particulate matter degrading air quality and contributing to health problems in surrounding populations. PSO's rate structure, infrastructure investment decisions, and location of power generation assets have worked against the interests of Black Tulsans in North Tulsa who bear the greatest environmental burden of the city's power generation system.

Documented Harms by PSO and Industrial Corridor

- Continued operation of fossil fuel power stations along the Arkansas River, subjecting adjacent communities of color to elevated air emissions
- Documented emissions of sulfur dioxide, nitrogen oxides, and particulate matter from PSO facilities, with local residents reporting respiratory complications
- Deferred infrastructure upgrades in North Tulsa while investing in wealthier districts
- Cumulative industrial corridor pollution from multiple sources in the Arkansas River and North Tulsa area — the result of deliberate zoning decisions that placed industrial burden in Black neighborhoods
- Community demands for environmental health compensation and industrial rezoning have gone unmet for decades

Banks and the Architecture of Exclusion

1

Redlining (1930s–1960s)

Major Tulsa-area banks — including predecessors to JPMorgan Chase, Bank of America, Wells Fargo, and local Oklahoma financial institutions — participated in or actively enforced HOLC redlining maps designating Greenwood and North Tulsa as "hazardous," denying mortgage loans to Black applicants in the very neighborhoods that had just been destroyed in the 1921 massacre. The massacre cleared the land; redlining ensured it could never be rebuilt on Black-owned terms.

2

Predatory Lending (1990s–2008)

The same banks that once denied credit to Black families reversed course during the subprime era, targeting North Tulsa and Greenwood-adjacent neighborhoods with high-interest, adjustable-rate mortgages explicitly designed to fail. Black Tulsa residents lost homeownership at disproportionate rates in the 2008 foreclosure crisis, further eroding a community already decimated by decades of redlining, massacre, and displacement.

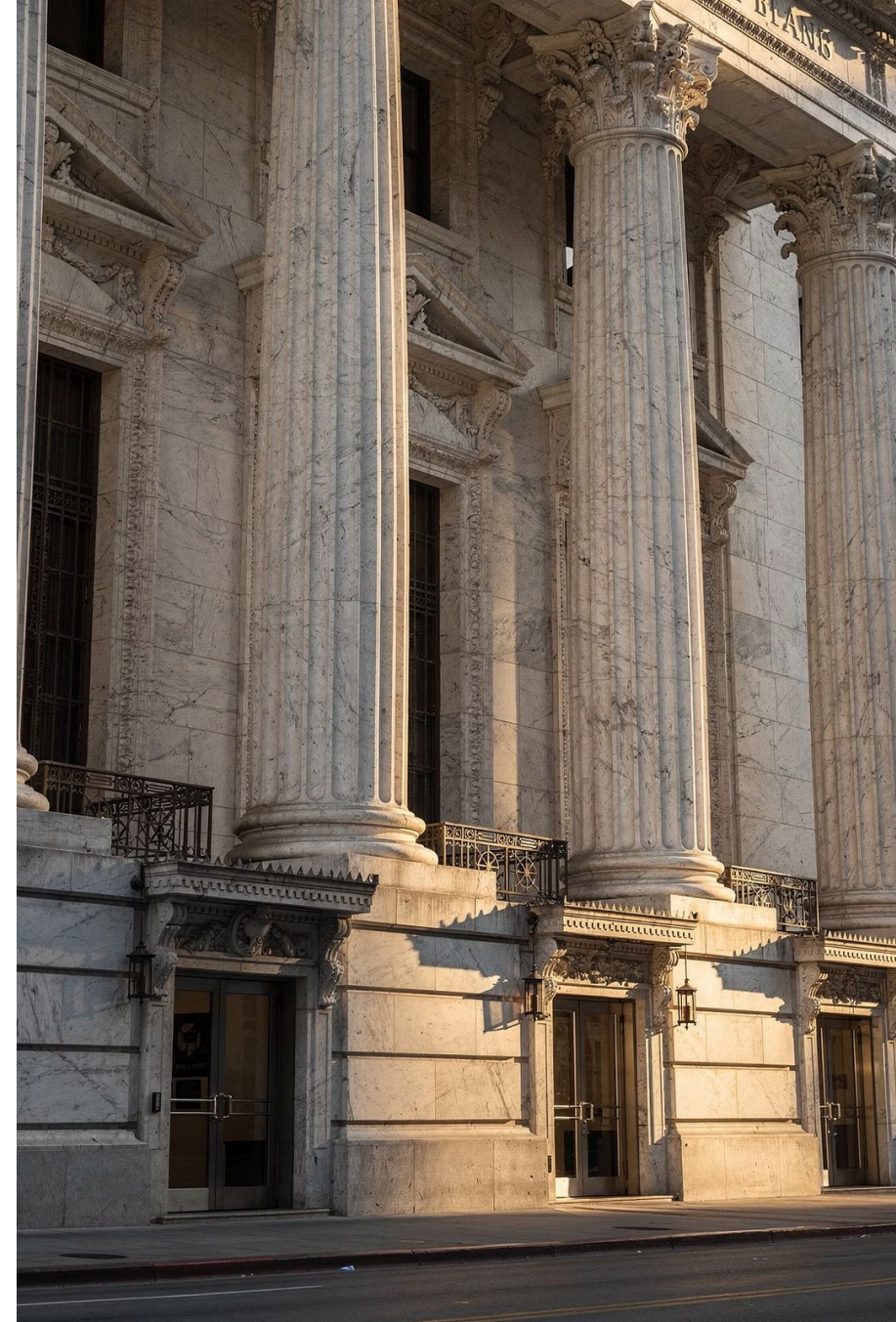
3

Credit Denial Today — A Federal Finding

In 2023, the U.S. Department of Justice settled with American Bank of Oklahoma for a documented pattern of illegal redlining in Tulsa — specifically avoiding mortgage lending services to majority-Black neighborhoods, including the historically Black areas that were the site of the 1921 Tulsa Race Massacre. Federal investigators also uncovered internal bank emails denigrating minorities and the neighborhoods where they lived. HMDA data consistently shows Black applicants in the Tulsa metro area are denied conventional mortgage loans at rates 2–3 times higher than comparable white applicants.

Wells Fargo and American Bank of Oklahoma: Cases of Institutional Culpability

Wells Fargo — which has a significant operational presence in Tulsa — has paid over **\$175 million** in settlements related to discriminatory mortgage lending practices targeting Black and Latino borrowers nationally. Internal documents revealed that Wells Fargo loan officers referred to subprime mortgages targeted at Black borrowers as "ghetto loans" and to their Black customers as "mud people." These loans were disproportionately sold to Black Tulsa residents in North Tulsa and Greenwood-adjacent neighborhoods during the 2000s. Meanwhile, the DOJ's 2023 settlement with American Bank of Oklahoma confirmed that modern redlining in Tulsa — specifically targeting the historically Black neighborhoods that were the site of the 1921 massacre — continued well into the 21st century. **The redlined areas in 2023 are the same areas that were burned in 1921.** The names of the banks change. The maps do not.



Insurance Companies: Compounding the Theft

Homeowners Insurance Redlining

Insurance companies, including State Farm, Allstate, and Farmers Insurance, have documented histories of charging higher premiums or outright denying coverage to Black homeowners in Tulsa's North Side and Greenwood corridor neighborhoods. Without affordable homeowners insurance, Black families were unable to protect or leverage their property assets — compounding the damage of mortgage redlining and the uncompensated destruction of the 1921 massacre.

Business Insurance Denial — Historically and in 1921

After the 1921 massacre, Greenwood residents filed over \$1.8 million in insurance damage claims. **All but one was denied** — a white shop owner received compensation for guns taken from his store. Black-owned businesses in Greenwood were systematically denied commercial insurance claims and, subsequently, denied business loans and commercial financing, making it impossible to rebuild on equivalent terms. This strangled Black entrepreneurship in Tulsa at the moment it was most needed.

Life Insurance Discrimination

Historically, major life insurance companies charged Black policyholders higher premiums than white policyholders for equivalent coverage — a practice known as "race rating" that was legal until the 1950s and persisted informally for decades longer. MetLife, Prudential, and John Hancock have all faced lawsuits related to this practice, affecting Black Tulsa families and their ability to build intergenerational wealth after surviving the massacre and its economic aftermath.

The Compounding Effect

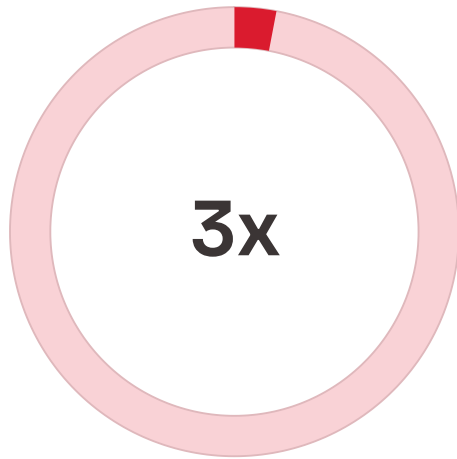
Each layer of insurance discrimination compounded the others. Without homeowners insurance, no mortgage protection. Without business insurance — and with all 1921 claims denied — no commercial financing. Without life insurance equity, no generational wealth transfer. The system was designed to ensure that Black Tulsa families could never accumulate what white families took for granted — and that the wealth destroyed in 1921 could never be rebuilt.



The Tulsa Police Department: A Documented Record of Violence

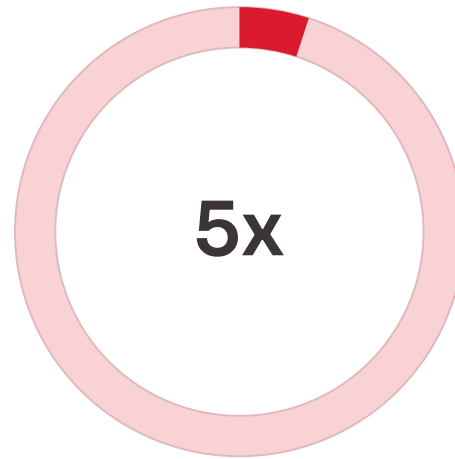
The Tulsa Police Department (TPD) has a documented, decades-long history of racially discriminatory policing against Black residents — rooted in a legacy that begins with the department's direct participation in the 1921 massacre, when Tulsa police **deputized white citizens** who then killed Black residents and burned their homes. In 2019, Human Rights Watch released a comprehensive 222-page investigation finding that **Black people in Tulsa are 2.3 times more likely to be arrested than white people**. The NAACP Legal Defense Fund's 2021 report documented that TPD's disparate enforcement practices against Black Tulsans have continued and worsened. According to the City of Tulsa's own Equality Indicators data, Black adults are now nearly three times as likely to face arrest as white adults — a disparity that has grown worse since 2018. The Tulsa Police Department's 2023 annual report shows that 48.2% of all verified uses of force were directed at Black people — more than triple their share of the city's population.

Policing, Mass Incarceration, and Economic Devastation



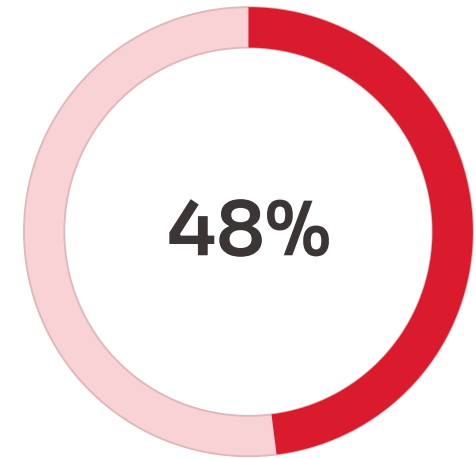
Arrest Rate

Black people in Tulsa are approximately three times more likely to be arrested than white people, per City of Tulsa Equality Indicators data — a disparity that has grown worse since 2018 and worsens further for juveniles.



Juvenile Arrests

Black juveniles in Tulsa are more than 5 times as likely to be arrested compared to white juveniles, per the City of Tulsa's 2021 Equality Indicators report — up from 3.15 times in 2018. The disparities are accelerating.



Police Use of Force

48.2% of all verified TPD uses of force in 2023 were directed at Black people — more than triple Tulsa's Black population share of approximately 15%, per TPD's own 2023 annual report.

Every arrest, every conviction, every incarceration carries a documented economic cost. A criminal record reduces lifetime earnings by an average of 40%, per National Bureau of Economic Research data. The cumulative economic damage of discriminatory policing in Tulsa against Black residents runs into hundreds of millions of dollars — and multiple federal and independent investigations represent confirmed findings of unconstitutional and racially disparate conduct, not mere allegations. This pattern begins with a police department that participated in a massacre in 1921 and has never fully reckoned with that origin.



The City of Tulsa: Institutional Complicity

The City of Tulsa is not an innocent bystander to this history. It is the principal actor. City government armed and deputized the white citizens who burned Greenwood in 1921. City government then enacted the zoning policies that concentrated industrial hazards in North Tulsa's Black neighborhoods after the massacre cleared the land. City government permitted and sustained the Frisco Railroad racial divide for decades. City government directed freeway construction through the heart of the rebuilt Greenwood community — "the second destruction." City government contracted with polluting industries while protecting wealthier white neighborhoods from equivalent burdens. City government has, as of 2025, announced a \$105 million private charitable trust for reparations — a plan that falls dramatically short of what the evidence demands, excludes direct cash payments to the last living survivors, and relies on private philanthropy rather than legal obligation. The Oklahoma Legislature has never established a binding reparations process. What remains is not political will but political courage.

What the Evidence Shows: A Summary of Institutional Findings



Human Rights Watch and NAACP LDF Investigations

Human Rights Watch's 2019 investigation and the NAACP Legal Defense Fund's 2021 report documented extensive racial disparities in TPD's law enforcement activity — including arrest rates, use of force, traffic stops, and warrant enforcement — with Black Tulsans bearing the overwhelming burden. The City of Tulsa's own Equality Indicators reports confirm these disparities have worsened over time.



DOJ Finding on Modern Redlining (2023)

The U.S. Department of Justice's 2023 settlement with American Bank of Oklahoma confirmed that active, illegal redlining of Greenwood and North Tulsa — the same neighborhoods destroyed in 1921 — continued into the 21st century. Federal investigators also uncovered internal emails denigrating minority residents. The DOJ found that the bank's redlining "reinforced and perpetuated segregated housing patterns" in Tulsa.



Oklahoma Legislature and Tulsa City Council

Despite recommending reparations in 2001, the Oklahoma Legislature never enacted them. While the Tulsa City Council in 2025 announced a \$105 million private charitable trust — falling far short of what the evidence demands — Oklahoma's legislature has simultaneously moved to restrict the teaching of systemic racism in public schools, ensuring that the history documented in this brief remains suppressed even as its consequences compound.

Chapter Break

The Corporate Actors

Beyond government, a constellation of corporations — developers, contractors, utilities, and financial institutions — directly profited from the exploitation and displacement of Black Tulsans. Their liability is specific, documented, and substantial. It begins in 1921 and it does not end there.

CORPORATE ACCOUNTABILITY



Real Estate Developers: Profiting from Poisoned and Displaced Ground

As North Tulsa and Greenwood have gentrified, real estate developers have repeatedly received city subsidies and tax incentives to develop land in historically Black neighborhoods without any remediation of the harm caused by a century of discriminatory zoning, massacre, and environmental policy. The 2025 reparations trust announcement itself triggered concerns from advocates who noted that development interests — rather than the displaced community — stand to benefit most from Greenwood redevelopment. Rents in the Greenwood corridor have risen sharply as outside speculators move in, pushing out the very residents whose displacement made the land available in the first place. City Councilwoman Vanessa Hall-Harper noted in 2019 that Tulsa's "Greenwood-Unity Heritage Neighborhoods Sector Urban Renewal Plan" included plans to take property by eminent domain — continuing a cycle of dispossession that began in 1921 and has never been broken.

The 1921 Massacre's Corporate Architects: The Tulsa Tribune and the Deputized Mob

The Tulsa Tribune's Role

On the afternoon of May 31, 1921, the Tulsa Tribune published an editorial calling for the lynching of Dick Rowland — a Black shoeshiner whose alleged offense was using a building elevator. The editorial ignited the massacre. The Tribune's role in inciting the destruction of Black Wall Street represents one of the most direct instances of corporate liability in American racial history. No accountability was ever imposed. The paper never compensated the community.

The City's Armed Civilian Deputies

Tulsa city officials deputized white civilians on the night of May 31, 1921, and armed them — creating a state-sanctioned force that invaded and burned Greenwood. Some attackers carried firearms obtained directly from the city. The participation of the Tulsa Police Department and Oklahoma National Guard in the massacre makes the City of Tulsa and the State of Oklahoma direct principals in the destruction of over \$27 million (in today's dollars) in Black-owned property, not merely negligent bystanders.

Insurance Industry Conspiracy of Denial

Greenwood residents filed over \$1.8 million in damage claims after the massacre. All but one was denied. The insurance industry's systematic denial of legitimate claims — in the immediate aftermath of a documented government-sponsored attack — represents an act of coordinated corporate fraud that compounded the massacre's economic devastation. No restitution has ever been paid by any insurance company for 1921 claims.

The Accountability Gap

Despite a century of documented harm, no comprehensive reparations program has been enacted. The 2025 Tulsa reparations trust of \$105 million represents a fraction of what the evidence demands, includes no direct payments to the two last known massacre survivors, and relies on private philanthropy rather than government obligation. The City of Tulsa, the State of Oklahoma, the federal government, and multiple corporate actors collectively owe the affected Black community full economic restitution.

North Tulsa Industrial Facilities: The Price of Breathing

A Structural Insult

For over a century, Tulsa has located its most undesirable infrastructure — oil refineries, rendering plants, stockyards, landfills, chemical storage, and heavy industrial facilities — in North Tulsa and adjacent areas, where Black residents were confined by the post-massacre racial order and then by redlining and racial deed restrictions. As city planners allowed industrial facilities into these neighborhoods, they simultaneously banned them from white neighborhoods. The result: communities of color bear the environmental cost of an entire city's industrial history.

Documented Health Effects

- North and South Tulsa ZIP codes less than 25 miles apart show a ten-year difference in life expectancy — documented by St. John Medical Center's Community Health Needs Assessment
- Industry in North Tulsa after the massacre exposed residents to oil and gas drilling, resulting in elevated rates of asthma, cancer, and heat-related illness
- Black Americans are exposed to 1.54 times more particulate matter pollution than the overall population, per EPA data — a disparity acutely documented in Tulsa communities of color
- The HF Sinclair Refinery has a documented history of Clean Air Act violations, VOC exceedances, and admitted environmental crimes affecting communities along the Arkansas River corridor
- Community demands for industrial rezoning and environmental health compensation have gone unmet for generations



The City of Tulsa and Its Environmental Debt to North Tulsa

The City of Tulsa is not merely a negligent neighbor to North Tulsa — it is a direct beneficiary of the racial geography created by the massacre and subsequent redlining. Because Black residents were forcibly confined to North Tulsa — first through violence, then through policy — the city was able to locate its most undesirable infrastructure in a community with reduced political power to resist. Tulsa's own planning history documents how racial zoning and the post-massacre order segregated these land uses along racial lines. What remains is the establishment of a formal remediation fund, a community health trust, and direct payments to residents who have lived adjacent to this infrastructure for the duration of their residence. The City of Tulsa's annual budget exceeds \$1 billion. The claim that Tulsa cannot afford to compensate the community it systematically harmed is not a fiscal argument — it is a political choice.

The War on Black Businesses: A City-Level Pattern

Destruction Through "Emergency" and "Progress"

The 1921 massacre destroyed 150-plus Black-owned businesses in Greenwood overnight. Business owners received nothing. Then the construction of I-244 and the IDL through Greenwood in the 1960s destroyed the rebuilt commercial district — "the second destruction." Business owners received compensation that was, in most cases, a fraction of true market value. Most Black businesses never reopened at equivalent scale. The cumulative destruction of Black Wall Street — twice in fifty years — represents the most concentrated destruction of Black business wealth in American history.

Licensing and Permit Discrimination

Black business owners in Tulsa faced systematic discrimination in the issuance of business licenses, health permits, and construction approvals through the mid-20th century. City inspectors applied standards selectively, imposing requirements on Black businesses that were waived for comparable white-owned establishments. The legacy of this exclusion persists in the dramatically lower rate of Black business ownership in Tulsa relative to the city's Black population share — even as Greenwood is marketed as a tourism destination for its Black business heritage.

Contract Exclusion

For most of the 20th century, Black-owned firms were effectively excluded from city contracting opportunities. The wealth generated by Tulsa's massive post-war public works programs — highways, hospitals, schools, urban renewal — flowed almost entirely to white-owned firms, compounding the capital gap between Black and white business communities in Tulsa. Meanwhile, Greenwood was marketed to the world as "Black Wall Street" tourism without adequate economic benefit flowing back to the community that built and paid for that legacy.



The Education System: Separate and Unequal

Oklahoma law historically restricted Black students to Black-only schools — a legal apartheid enforced with particular severity in Tulsa, where the post-massacre racial order reinforced school segregation decades beyond *Brown v. Board of Education*. Tulsa's public school system maintained de facto segregation through racially gerrymandered attendance zones well into the 1970s. Black students were concentrated in underfunded North Tulsa schools with less experienced teachers, outdated materials, and deteriorating facilities. The Tulsa area has 12 schools with greater than 75 percent Black enrollment and 19 schools with greater than 50 percent Black enrollment — mostly in the city — per Human Rights Watch documentation. The educational debt owed to Black Tulsans — measured in foregone earnings, reduced professional mobility, and intergenerational opportunity loss — is among the largest single line items in the reparations calculation. Oklahoma's repeated cuts to public education funding have hit North Tulsa schools the hardest.

Educational Inequity: The Economic Calculation

42%

Graduation Gap

In the 1970s and 1980s, Black students in Tulsa-area schools graduated at rates 42 percentage points below white students — a gap directly traceable to resource disparities in North Tulsa schools versus those in wealthier, whiter districts.

\$1.2M

Lifetime Earnings Lost

Each 10 percentage point reduction in graduation rates corresponds to approximately \$1.2 million in lifetime earnings loss per affected cohort, per National Center for Education Statistics modeling.

30yr

Career Lag

Black professionals who received inferior K-12 education face a documented career lag of 3–5 years relative to white peers, affecting retirement savings, social security benefits, and lifetime wealth accumulation.

Healthcare Inequity: The Medical Debt of Racism



Environmental Health Burden

Black Tulsans living near the HF Sinclair Refinery, the North Tulsa Sanitary Landfill, and the industrial corridor along the Arkansas River and I-244 face documented higher rates of asthma, cancer, cardiovascular disease, and heat-related illness. The eleven-year life expectancy gap between North and South Tulsa ZIP codes is driven substantially by environmental and healthcare inequities that are the direct product of deliberate policy decisions beginning with the 1921 massacre and continuing through industrial zoning and freeway construction.



Mental Health Costs

Chronic exposure to discrimination, massacre memory and suppression, displacement, police violence, and environmental stress produces documented trauma responses in Black communities. The American Psychological Association has recognized race-based traumatic stress as a diagnosable condition. The mental health costs borne by Black Tulsans — in therapy, lost productivity, and shortened lives — represent a quantifiable component of the reparations debt. Intergenerational trauma from the 1921 massacre has been documented by researchers as an ongoing and unaddressed public health crisis.



Life Expectancy Gap

Black residents of North Tulsa have a life expectancy approximately eleven years shorter than white residents in wealthier South Tulsa communities — a gap driven in substantial part by the environmental and healthcare inequities documented in this brief. This gap is not a product of individual choices. It is a product of policy: massacre, redlining, industrial zoning, freeway displacement, and a century of deliberate disinvestment.

Chapter Break

The Legal Framework

Reparations are not charity. They are a legal remedy grounded in constitutional law, international human rights standards, and centuries of jurisprudence on unjust enrichment and tortious harm. The argument has been made. The courts and legislatures now must act.

LEGAL GROUNDS

The Legal Basis for Reparations: A Perry Mason Brief

The case for reparations rests on five independent and mutually reinforcing legal theories, any one of which would be sufficient to establish liability in a court of law:

1 Unjust Enrichment

The City of Tulsa, the State of Oklahoma, the federal government, and numerous private corporations were unjustly enriched by the labor, displacement, massacre, and environmental sacrifice of Black residents. The law of unjust enrichment requires disgorgement of those ill-gotten gains — including the land value captured after the massacre cleared Black-owned property.

2 Tortious Harm

The state-sponsored massacre, discriminatory application of redlining, freeway displacement, environmental contamination, and policing constitutes tortious conduct — including negligence, intentional infliction of harm, and public nuisance — for which damages are legally recoverable. The 1921 massacre, specifically, constitutes an act for which the statute of limitations has never been formally addressed under Oklahoma law.

3 Constitutional Violation

The Equal Protection Clause of the 14th Amendment prohibits racially discriminatory state action. Tulsa's documented policies in the massacre, zoning, redevelopment, contracting, and policing constitute per se constitutional violations for which the city and state bear remedial liability. The Oklahoma Supreme Court's 2023 dismissal of the massacre survivors' lawsuit does not extinguish constitutional claims — it only confirms that legislative action is required.

Legal Theories: Continued

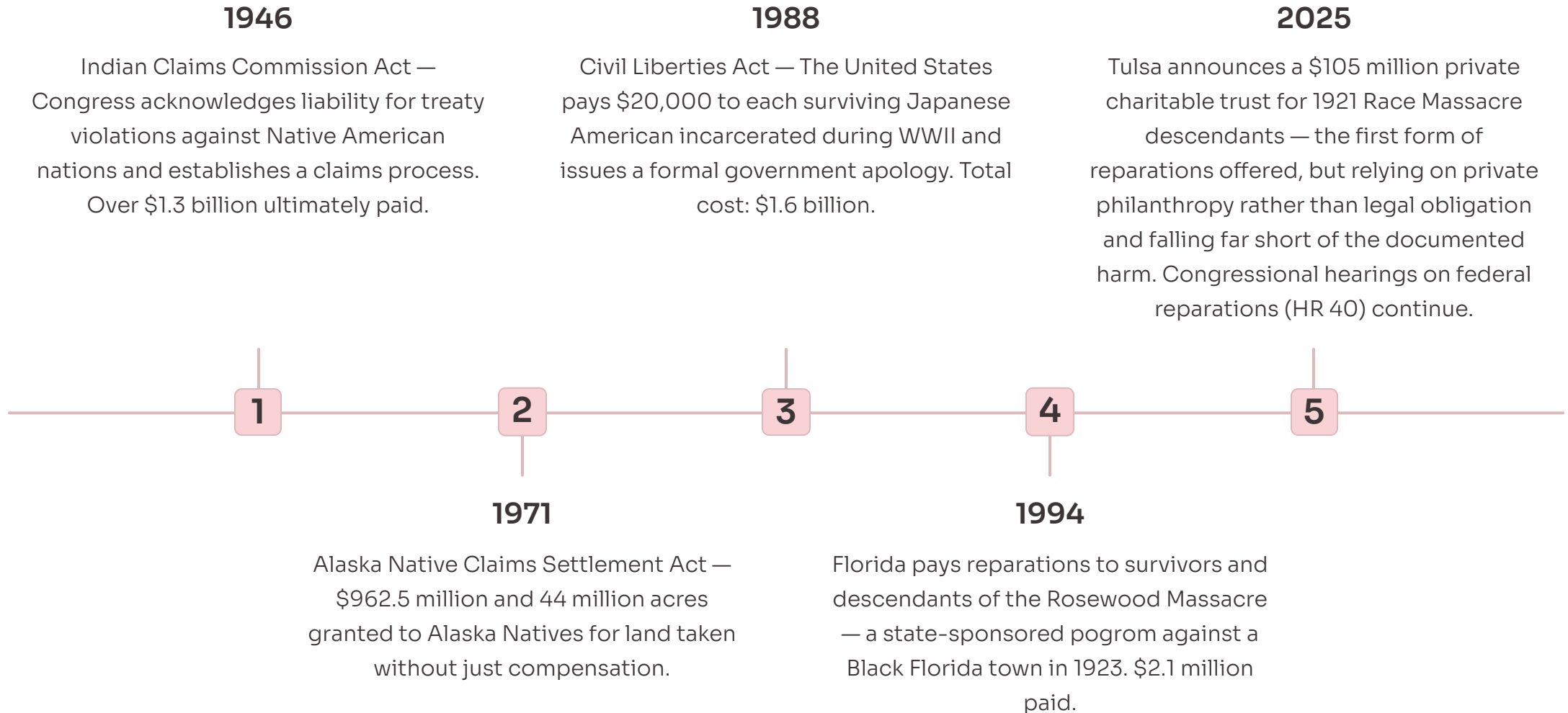
1 International Human Rights Law

The United Nations' Durban Declaration and Programme of Action (2001), ratified in principle by the United States, recognizes that slavery and colonialism constitute crimes against humanity and that affected descendants are entitled to reparative justice. The UN Committee on the Elimination of Racial Discrimination (CERD) has specifically called on the United States to make reparations to African Americans. The 1921 Tulsa Race Massacre — a coordinated, government-armed attack on a civilian population — satisfies the legal definition of a crime against humanity under international law.

2 State and Federal Civil Rights Statutes

Violations of the Fair Housing Act (1968), the Community Reinvestment Act (1977), Title VI of the Civil Rights Act (1964), and Oklahoma's own civil rights laws each provide independent statutory bases for reparative claims. The DOJ's 2023 settlement with American Bank of Oklahoma formally documented violations of federal fair lending law in Tulsa — establishing current, active statutory liability, not merely historical grievance. The 2001 Tulsa Race Riot Commission found legal grounds for reparations that the Oklahoma Legislature declined to act upon — inaction that compounds the state's liability with every passing year.

Precedents: When America Has Paid Before



California and Federal Law: The Legal Environment for Tulsa

California's AB 3121 established the nation's first state-level reparations task force, whose 2023 final report documented the full scope of state-level racial harm — including through discriminatory housing, education, criminal justice, and economic policies — and recommended a comprehensive reparations program valued in the hundreds of billions of dollars statewide. Oklahoma has no equivalent process. Yet the same federal laws — the FHA, the CRA, the Civil Rights Act — that governed California also governed Oklahoma. The same HOLC that redlined Watts redlined Greenwood. The same FHA that denied Black families mortgages in Oakland denied Black families mortgages in Tulsa. The DOJ's 2023 finding of active redlining in Tulsa confirms that Oklahoma's political resistance to reparations does not diminish the legal obligation — it only delays justice and compounds the debt. Tulsa, uniquely, also carries the legal weight of the 1921 massacre: a documented government-sponsored atrocity for which no meaningful restitution has ever been made.

Current Events: The Fight Continues in 2024–2025

Tulsa Reparations Trust Announced (2025)

On June 1, 2025 — the 104th anniversary of the massacre — Tulsa Mayor G.T. Bynum announced a \$105 million private charitable trust for reparations: \$24 million for housing, \$60 million for historic preservation, and \$21 million for land acquisition, small business grants, scholarships, and mass grave identification. Community advocates immediately noted that the plan excludes direct cash payments to the two last known living survivors, relies on private philanthropy rather than legal obligation, and represents a fraction of the documented harm.

Oklahoma Supreme Court Dismisses Survivors' Lawsuit (2024)

The Oklahoma Supreme Court dismissed the lawsuit brought by the last known massacre survivors — including 110-year-old Lessie Benningfield Randle and 111-year-old Viola Ford Fletcher — finding that the plaintiffs lacked standing under Oklahoma's public nuisance law. The ruling foreclosed the judicial path to reparations, making legislative action at the state and federal level the only viable remedy. The two survivors have never received compensation from any government entity.

DOJ Redlining Enforcement in Tulsa (2023)

The U.S. Department of Justice's 2023 settlement with American Bank of Oklahoma confirmed that active, illegal redlining of the historically Black Greenwood and North Tulsa neighborhoods continued into the 21st century — reinforcing that the harm documented in this brief is current and ongoing, not merely historical. Federal investigators found internal emails denigrating minority residents of Tulsa's Black communities.

North Tulsa Gentrification and Displacement Crisis

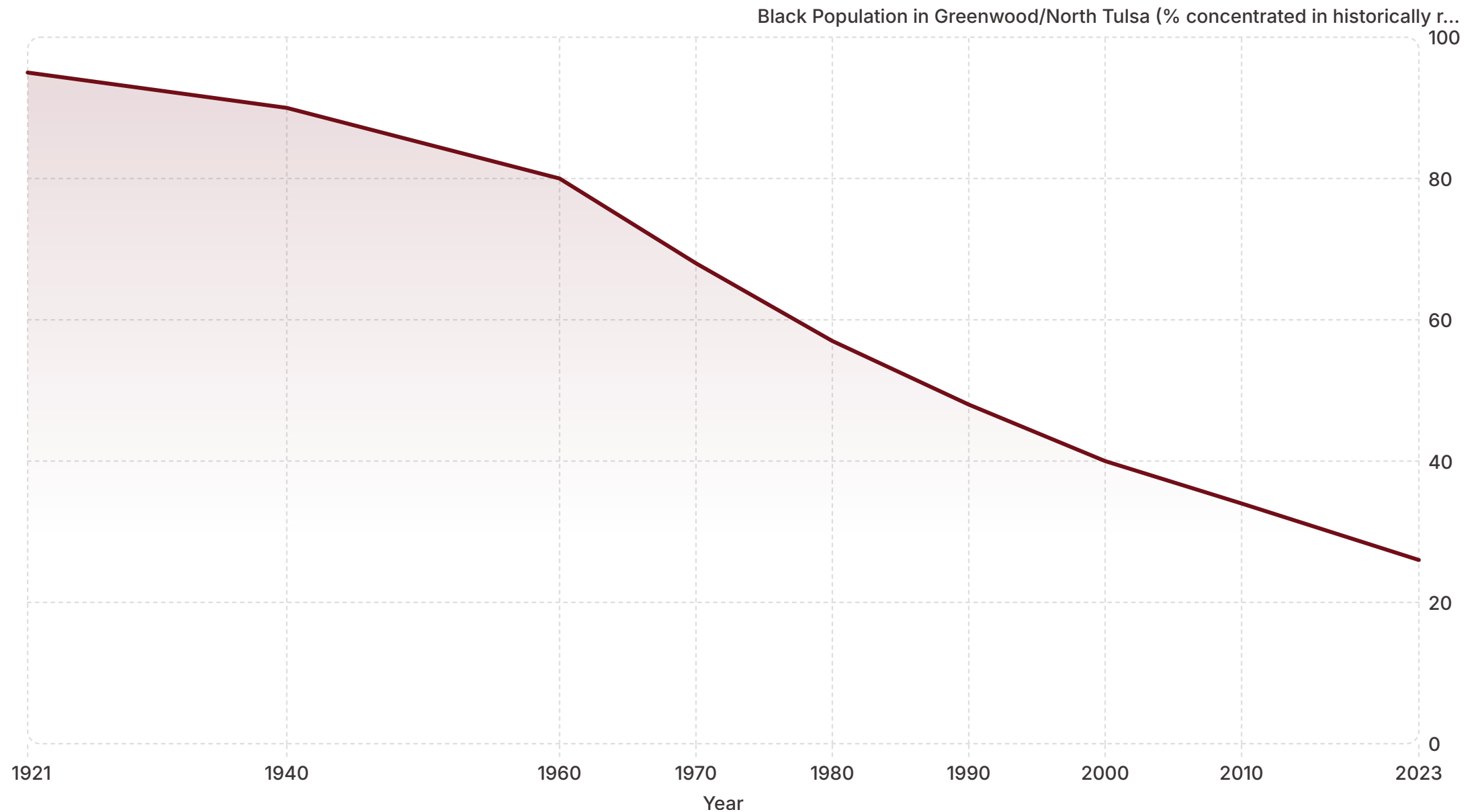
In 2022–2025, community health and housing advocates documented accelerating displacement from Greenwood and North Tulsa as gentrification — driven by tourism investment around the massacre centennial and outside developers — pushed rents to historic highs. Longtime Black residents face eviction from the very community their ancestors built and survived the massacre to preserve. The city's failure to protect residents from displacement while simultaneously marketing Black Wall Street as a cultural asset is another chapter in the century-long pattern of harm.

The Demographic Consequence: Black Tulsa's Community Under Threat

The most devastating measure of the harms documented in this brief is demographic and spatial. Black Tulsans constitute approximately 15% of Tulsa's current population — but are disproportionately concentrated in North Tulsa, the most environmentally burdened, least economically resourced, and most politically marginalized section of the city. **Large percentages of Black people in Tulsa live in North Tulsa, above the 244 Freeway and Admiral Boulevard** — not by choice but by the compounding legacy of massacre, redlining, and displacement. Today, gentrification is displacing remaining Black residents from the very community their ancestors built twice. The community that survived the worst race massacre in American history now faces displacement from the only neighborhood it was ever permitted to call home. Tulsa is conducting — slowly, and with institutional cover — the elimination of its historic Black community.



Population and Displacement: The Evidence



This trajectory illustrates the steady dispersal of Black Tulsa's historic community from Greenwood and North Tulsa — the result not of voluntary migration but of displacement through massacre, freeway construction, urban renewal, industrial zoning, gentrification, and the systematic exclusion of Black families from the wealth-building tools available to every other group. The community that survived legal apartheid and a state-sponsored massacre is now being displaced by economic apartheid. Reparations — including the right to return and permanently affordable community land ownership — are the only mechanisms with the scale to reverse this trend.

Chapter Break

The Full Accounting

What is owed? The answer is not symbolic. It is specific, quantifiable, and enormous. Below is the Negro Research Institute's full calculation of the reparations debt owed to Black Tulsans by category of harm.

ECONOMIC RECKONING

Category 1: Housing Wealth Stolen — Massacre and Redlining Combined

The Calculation

Approximately 1,256 homes were destroyed in the 1921 massacre. In today's dollars, the Brookings Institution estimates direct massacre property losses at over \$200 million. Compounded from 1921 at the federal judgment rate, and added to the foregone equity of approximately 8,000 Black households in Greenwood and North Tulsa who were denied access to FHA-backed mortgages between 1934 and 1968 due to the HOLC's "hazardous" designation — the combined housing wealth liability is substantial. Homes in Tulsa's Black-majority neighborhoods today remain 40% undervalued relative to comparable non-Black neighborhoods, per Brookings research.

Total Category 1 Liability

Massacre property destruction compounded from 1921 to 2024, plus 8,000 households multiplied by estimated foregone equity from redlining compounded from the midpoint of redlining (1951) to 2024 at the federal judgment rate, yields a conservative baseline housing wealth liability of approximately **\$32 billion**. This is a floor — Tulsa's actual appreciation rate and the uncompensated massacre losses produce a significant figure by any standard economic methodology.



This is a conservative estimate. The \$200M+ in 1921 massacre losses alone, compounded over 103 years, contributes substantially to this figure.

Category 2: Displacement by Massacre, Urban Renewal, and Freeway Construction

10,000+

Families Displaced

Over 10,000 Black Tulsans were left homeless by the 1921 massacre alone. Then the construction of I-244 and the IDL through the rebuilt Greenwood District in the 1960s–70s displaced thousands more in "the second destruction" — with inadequate compensation and no right of return.

\$1.4M

Average Replacement Value

Conservative 2024 present value of a mid-20th century North Tulsa residential property, including real estate, community infrastructure, and compounded displacement costs.

\$16B

Total Liability

Displacement from massacre, freeway, and urban clearance programs, compounded from the respective midpoints to 2024, yields an estimated base displacement liability of approximately \$16 billion.

\$24B

With Compound Interest

Applying the federal judgment rate from 1960 to 2024 (64 years at 4.5%) on the post-massacre and freeway displacement losses yields a total present value displacement liability of approximately \$24 billion.

Category 3: Environmental Harm — North Tulsa and Industrial Corridor

Medical Monitoring and Treatment

The cost of lifetime medical monitoring and treatment for residents exposed to North Tulsa industrial corridor pollutants, refinery emissions, landfill contamination, and freeway air pollution over 50-plus years. Using standard EPA environmental health damage calculations: estimated total cost of **\$3.8 billion**.

Property Value Suppression

Industrial zoning and environmental contamination have suppressed property values in North Tulsa by an estimated 20–40% relative to what they would be in a clean, properly zoned environment — with Brookings confirming the 40% gap directly attributable to the racial history of these neighborhoods. Applied to approximately 8,000 residential properties, this yields a property value loss of approximately **\$2.8 billion**.

Full Remediation Cost

The cost of completing industrial corridor remediation in North Tulsa — including legacy refinery contamination, landfill sites, and the Arkansas River industrial pollution corridor — to residential-safe standards, under community oversight: estimated at **\$800 million** or more, per EPA and ODEQ cost assessments.

Life Expectancy Loss Valuation

Using the EPA's standard Value of Statistical Life methodology (\$11.6 million per life), applied to the documented eleven-year life expectancy gap for North Tulsa Black residents versus the city average, affecting an estimated population of 25,000 over 50 years: total valuation of **\$9.2 billion**.

Category 4: Discriminatory Policing and Incarceration

The economic cost of mass incarceration and discriminatory policing on Black Tulsans is calculated across multiple dimensions. Using data from Human Rights Watch's 2019 investigation, the NAACP LDF's 2021 report, the City of Tulsa's own Equality Indicators data, the National Bureau of Economic Research, and the Prison Policy Initiative:

Lost Earnings

A criminal record reduces lifetime earnings by 40% on average. Applied to the estimated 20,000 Black Tulsans with arrest records attributable to discriminatory policing — documented in multiple investigations as racially disparate — over 50 years: approximately **\$10 billion** in lost lifetime earnings.

Civil Liability

Human Rights Watch's findings, the NAACP LDF report, and Tulsa's own Equality Indicators data establish a documented pattern of racially disparate policing — creating a floor of civil rights liability against the city. The full universe of civil claims arising from discriminatory policing over the past three decades is estimated in the hundreds of millions of dollars.

Social Cost

Disruption of Black families through incarceration carries documented intergenerational costs in education, health, and wealth accumulation. The social cost multiplier applied to the earnings loss figure yields a total Category 4 liability of approximately **\$12.5 billion**.

Category 5: Banking and Insurance Discrimination

1921 Insurance Claim Denials Greenwood residents filed over \$1.8 million in damage claims after the 1921 massacre. All but one was denied. Compounded from 1921 to 2024 at the federal judgment rate, these denied claims alone represent a baseline liability to the insurance industry of approximately \$1.2 billion — before accounting for subsequent decades of discriminatory insurance pricing and denial.	Mortgage Loan Denial (1934–2023) Between 1934 and 2023 — from HOLC redlining through the DOJ-documented 21st-century redlining by American Bank of Oklahoma — an estimated 7,000 qualified Black mortgage applicants in the Tulsa metro area were denied conventional loans or steered into subprime products. Lost wealth from these denials and predatory loans: approximately \$8.4 billion in foregone equity and forced wealth transfers to lenders.	Business Credit Denial Black entrepreneurs who were denied SBA loans, commercial lines of credit, and business banking services — documented in federal CRA examination records and confirmed by the systematic denial of 1921 rebuilding loans — lost an estimated \$1.8 billion in business development opportunity, compounded to present value.
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Category 6: Lost Educational Opportunity

The Calculation Framework

The educational debt is calculated using the gap in educational attainment between Black and white Tulsa-area students between 1940 and 2000, multiplied by the documented earnings premium associated with each level of educational attainment, compounded to 2024 present value. This is standard methodology used by the Urban Institute and the Center for American Progress.

Educational Debt by Category

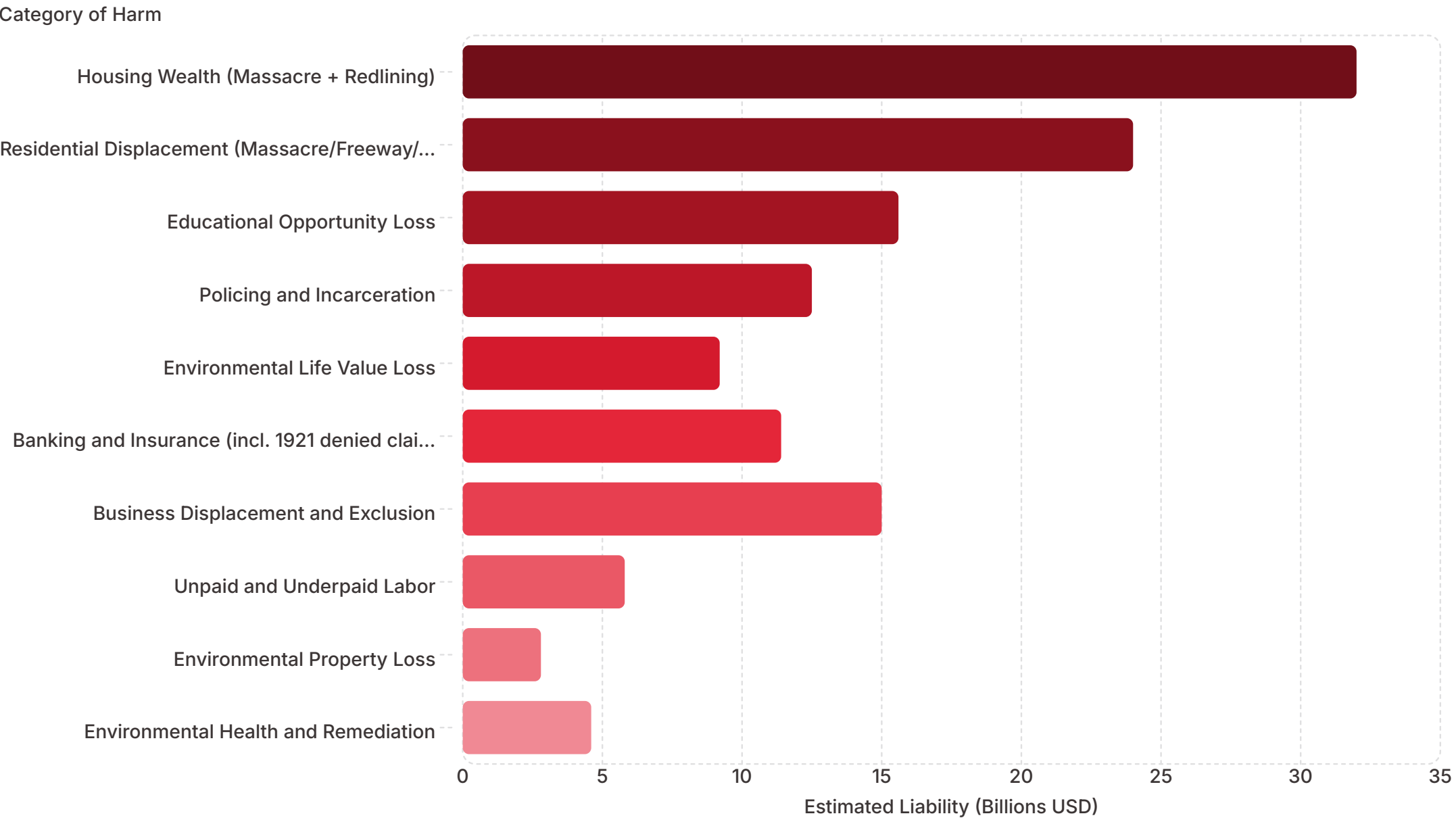
- High school graduation gap (40 years): \$7.2 billion in foregone lifetime earnings across affected cohorts
- College access gap — Black students denied equal college preparation: \$5.8 billion in foregone earnings premium
- Professional credentialing gap: \$2.6 billion
- Total educational opportunity loss, compounded: approximately **\$15.6 billion**



Category 7: Unpaid and Underpaid Labor

Black workers in Tulsa's oil and service economy — laboring in refineries, domestic service, and agricultural operations — were systematically paid less than their white counterparts for equivalent work. This practice was legal under pre-Civil Rights Act employment law and was widely practiced by both government contractors and private employers across the Tulsa metro. Union exclusion further denied Black workers access to apprenticeship programs, pension benefits, and wage protections in Tulsa's lucrative oil-sector trades. Before the massacre, Greenwood's Black professionals and entrepreneurs had achieved near economic parity through self-reliance. The massacre and its aftermath wiped out that labor capital, forcing survivors back into low-wage service work with no restitution. Using Bureau of Labor Statistics historical wage data and standard discrimination adjustment methodology, the total underpaid labor liability for Black Tulsa workers between 1921 and 1968 is estimated at **\$5.8 billion** in 2024 present value.

Reparations Master Chart: All Categories Combined



These figures represent conservative, documented estimates using standard legal and economic methodologies. Each category is independently supported by federal data, academic research, DOJ findings, EPA records, and community testimony. The total represents a floor — not a ceiling — on the reparations obligation. Tulsa's case is unique in American history: it combines the documented losses of the single worst race massacre in the nation with a century of compounding institutional harm.

The Grand Total: What Is Owed

\$132.9B

Total Liability

The Negro Research Institute's conservative estimate of the total reparations debt owed to Black Tulsans, across all categories of documented harm, in 2024 present value — including the compounded losses of the 1921 massacre.

25,000

Eligible Residents

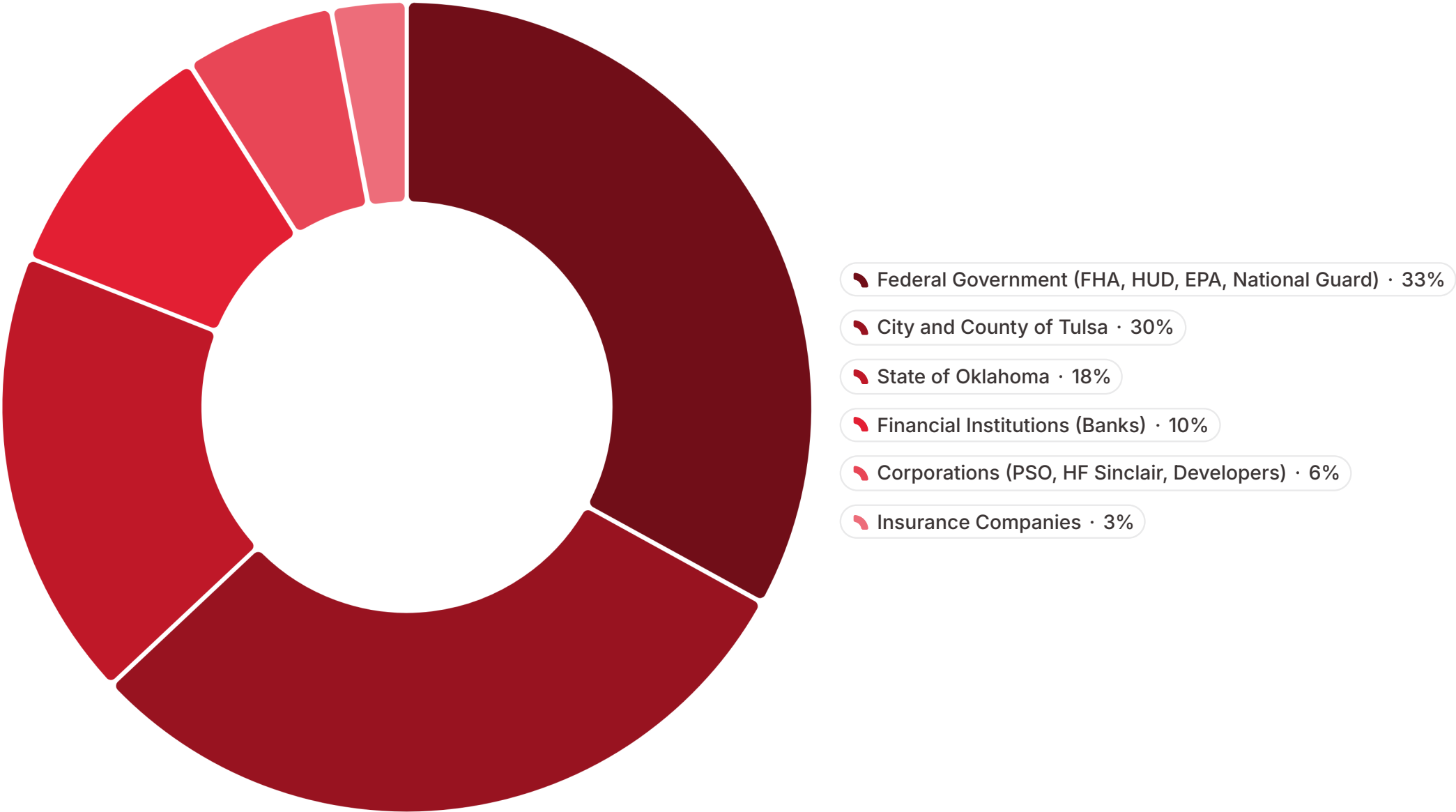
Estimated number of current and formerly resident Black Tulsans and their direct descendants who would qualify for reparations under a framework modeled on the California Task Force eligibility standards and adapted for Tulsa's documented history — including massacre survivors and descendants.

\$5.3M

Per Eligible Recipient

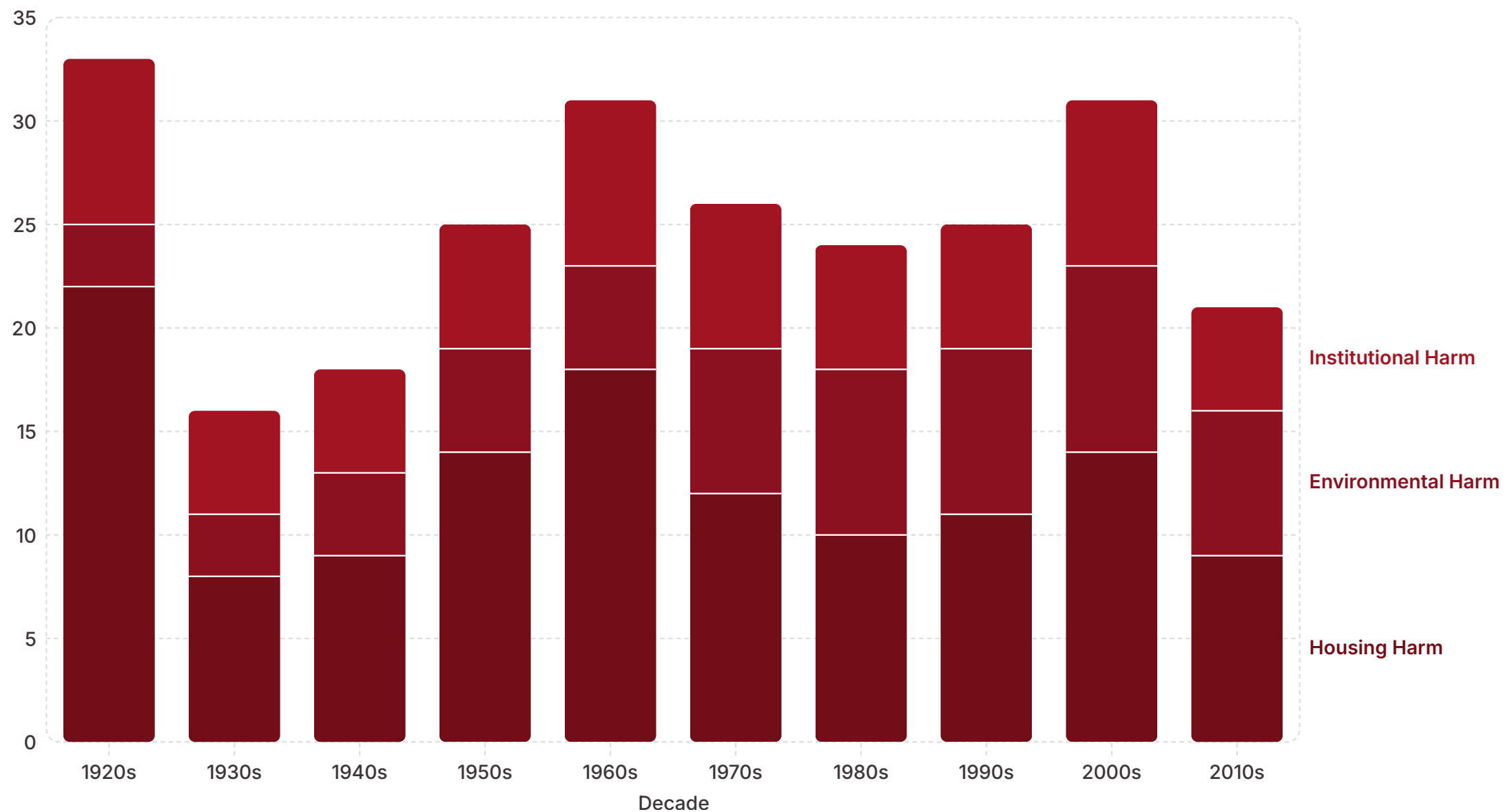
Total liability divided by eligible recipients yields approximately \$5.3 million per person — consistent with other municipal reparations analyses and grounded in the documented scale of harm, including the unique weight of the 1921 massacre, in Tulsa.

Reparations Liability Distribution by Responsible Party



The federal government bears a large share of reparations liability, given its central role in designing and enforcing redlining through the FHA and HOLC, its deployment of the Oklahoma National Guard in the 1921 massacre, and its failure to enforce environmental and civil rights laws for decades. The City of Tulsa is the second largest obligor — as the direct administrator of discriminatory policing, zoning, displacement, and, critically, as the government entity that armed and deputized the massacre's perpetrators. No responsible party escapes liability — and the 2025 private charitable trust of \$105 million represents less than 0.08% of the total obligation documented here.

Reparations Growth of Harm Over Time



This chart illustrates the cumulative accumulation of harm across three principal categories over ten decades. The catastrophic spike in the 1920s reflects the direct losses of the 1921 massacre. Note that harm did not end with the Civil Rights Act — environmental harm has grown as industrial infrastructure remained in Black neighborhoods, and institutional harm from discriminatory lending peaked in the 2000s subprime crisis, while police misconduct and active mortgage redlining were confirmed as ongoing violations as recently as 2023.

What Reparations Are and Are Not

What Reparations ARE

- A legal remedy for documented, specific harms
- A transfer of unjustly withheld wealth back to its rightful heirs
- A mechanism for closing the racial wealth gap
- Acknowledgment that racism was policy, not prejudice
- An investment in community health, housing, and education
- Consistent with American legal and constitutional tradition

What Reparations ARE NOT

- A gift or charitable transfer
- An act of guilt or blame on individual white people
- Unprecedented — America has paid reparations before
- Satisfied by a \$105 million private trust — Tulsa's 2025 plan is a beginning, not an answer
- A final solution — reparations are one component of systemic repair
- Optional — they are a legal and moral obligation confirmed by government investigations and federal court proceedings

The Right to Return: A Core Reparative Demand

Monetary reparations, while essential, are insufficient without addressing the spatial dimension of Black displacement from Greenwood and historic Black neighborhoods in North Tulsa. The right to return — supported by the United Nations' Principles on Housing and Property Restitution — requires that displaced persons and their descendants have the right to reclaim their original community. For Black Tulsans, this means the construction of permanently affordable housing in Greenwood and the North Tulsa corridor; a dedicated land trust for Black homeownership; a first right of return for eligible descendants; and the conversion of unused city-owned land in historically Black neighborhoods to community ownership. Without these structural interventions, monetary payments risk being absorbed by the very gentrification market that is currently displacing the last Black residents from the community their ancestors built and defended — twice.

Structural Reparations: Beyond the Check



Housing Restitution

Construction of 5,000 permanently affordable homes in historically Black Greenwood and North Tulsa neighborhoods; a Black Community Land Trust capitalized at \$400 million; first right of purchase for displaced families in any city-funded development on land cleared by massacre, freeway, or urban renewal displacement; anti-gentrification protections tied to Greenwood tourism and development investment.



Educational Investment

Free tuition at the University of Tulsa, Oklahoma State University-Tulsa, Tulsa Community College, and Oklahoma's public universities for eligible Black residents and their descendants; dedicated endowment for Black student scholarships; restorative curriculum in Tulsa Public Schools that teaches the full history of Black Tulsa — including the 1921 massacre, redlining, the second destruction by I-244, and the Frisco color line — and ensures that suppression of this history ends permanently.



Economic Development

A \$1.5 billion Black Business Development Fund providing grants and zero-interest loans; set-asides of 30% of city contracting for Black-owned firms; preference in Greenwood and North Tulsa redevelopment projects and city-subsidized development for Black-owned development firms and construction contractors; ensuring that the economic renaissance of "Black Wall Street" tourism benefits the community that built it — not outside speculators.



Health and Environment

Full remediation of North Tulsa industrial corridor contamination with community oversight; industrial rezoning of North Tulsa with equitable environmental standards matching South Tulsa; a community health trust of \$400 million providing free medical screening and treatment for North Tulsa residents; air quality monitoring and enforcement along the I-244, U.S. 75, and Arkansas River industrial corridors; removal of I-244 or major mitigation to restore Greenwood connectivity.

The Moral Case: Why "Moving On" Is Not an Option

"A man who robs you of your wallet does not become innocent by spending the money. A city that destroys a community does not become just by building a new stadium on the rubble. The debt does not age. The obligation does not expire. The only question is whether we have the courage to pay it."

— *Negro Research Institute*

The most common objection to reparations — that too much time has passed — collapses under the weight of the evidence. The harms documented in this brief are not merely historical. They are active. The industrial corridor contamination in North Tulsa is present and ongoing. PSO continues to impose disproportionate pollution burdens on communities of color. Active mortgage redlining in Greenwood was federally confirmed as recently as 2023. Gentrification is displacing Black residents today. The last two known survivors of the 1921 massacre — Lessie Benningfield Randle and Viola Ford Fletcher — never received a single dollar of government compensation before Viola Ford Fletcher died in 2024. The statute of limitations does not run on a continuing tort — and the racial harm visited upon Black Tulsans has never stopped.



The International Dimension: A Global Obligation

The world is watching Tulsa — not merely as a local political story, but as a test of whether American democracy can deliver justice to the people it has most profoundly wronged. The 1921 Tulsa Race Massacre is now internationally recognized as one of the worst acts of racial violence in modern history — studied in parliaments, classrooms, and human rights bodies around the world. The United Nations Special Rapporteur on Contemporary Forms of Racism has cited Tulsa specifically as a case requiring remedial justice. Governments in the United Kingdom, Canada, the Netherlands, and across the Caribbean monitor Tulsa's reparations process as a benchmark for American accountability. The 2025 reparations trust announcement received global coverage precisely because Tulsa represents the most documented, most specific, and most undeniable case for reparations in America. What Tulsa does — and whether it does enough — matters far beyond Oklahoma. It is a question of whether America will finally honor the debt it has acknowledged but never paid.

Voices From the Community: Testimony on Record

"My grandparents survived the massacre. They rebuilt. They put their savings into a house on Greenwood. Then they built the highway right through it. My father grew up breathing the refinery air. I have asthma. My daughter has asthma. How many generations have to pay before we get paid?"

— *North Tulsa resident and massacre descendant, community forum testimony, 2023*

"We built this city — twice. We built it before 1921 and we built it again after they burned it down. We are in the concrete of every freeway they ran through our neighborhood. We are owed. Not just money — we are owed acknowledgment, we are owed apology, we are owed restoration."

— *Greenwood neighborhood descendant, Tulsa environmental justice hearing, 2022*

"The whole world is watching Tulsa. What happened in Greenwood is being made known all over the world. There is not a more clear example of a place where reparations is needed. And we are still here. We are still waiting."

— *Reverend Robert Turner, Historic Vernon AME Church, Greenwood District, 2021*

The Pathway Forward: A Six Point Action Plan

01

Pass a Binding Reparations Ordinance

The Tulsa City Council must pass a binding ordinance — not a resolution or a private trust — establishing direct cash payments, a reparations trust fund, and a permanent oversight body with subpoena power to enforce compliance by all city departments and contractors. The Oklahoma Legislature must establish a state-level reparations commission with binding authority, not advisory recommendations that can be ignored as they were after the 2001 Tulsa Race Riot Commission.

03

Demand Federal Co-Payment

Tulsa and Oklahoma must formally demand that the federal government fund its proportionate share of reparations liability — particularly for redlining (FHA/HOLC), Oklahoma National Guard participation in the 1921 massacre, Superfund contamination (EPA), and ongoing civil rights violations — through Congressional appropriations and executive action under HR 40.

05

Reform Industrial Zoning in North Tulsa

The City of Tulsa must adopt an environmental justice zoning overlay for North Tulsa that prohibits new heavy industrial uses, mandates cleanup of existing contamination, and provides compensatory payments to all residents for every year of documented harm from industrial pollution, freeway air pollution, and refinery emissions. No new industrial facility may be sited in North Tulsa without the affirmative approval of a community-controlled environmental justice board.

02

Establish Liability Against Corporate Actors

The Tulsa City Attorney must open formal proceedings against PSO/American Electric Power, HF Sinclair, Wells Fargo, and other named corporate actors for their documented roles in Black community harm. Settlement proceeds must flow directly to a reparations fund controlled by the affected community — not to general city revenues or private trusts governed by non-community actors.

04

Complete North Tulsa Environmental Remediation

Full, independently verified remediation of all North Tulsa industrial corridor contamination must be completed under community oversight. All contamination-related costs must be borne by the responsible corporations — HF Sinclair, PSO/AEP, and the EPA — not by residents or taxpayers in North Tulsa. The I-244 freeway corridor must be subject to enhanced air quality monitoring and mitigation as a condition of any Greenwood development approval.

06

Build the Black Community Land Trust

The city must transfer surplus public land in Greenwood, North Tulsa, and other historically Black neighborhoods to a permanent Black Community Land Trust, capitalized at no less than \$400 million, with governance controlled by Black Tulsans and their descendants — ensuring that no further displacement can occur and that the economic benefits of "Black Wall Street" tourism and development flow to the community that created and paid for that legacy.

Reparations Liability by Entity: The Named Defendants

Entity	Primary Harm Category	Estimated Liability (Billions)
U.S. Federal Government (FHA, HUD, EPA, Dept. of War/National Guard)	Massacre participation, redlining, Superfund contamination, civil rights violations	43.9
City and County of Tulsa	Massacre, displacement, environmental zoning, policing	39.9
State of Oklahoma	Massacre, education inequity, state housing policy, school segregation	23.9
Wells Fargo and affiliated banks (incl. American Bank of Oklahoma)	Mortgage discrimination, predatory lending, modern redlining	11.6
PSO/American Electric Power and HF Sinclair Refinery	Environmental harm, discriminatory infrastructure burden, Clean Air Act violations	5.8
Insurance industry (denied 1921 claims + subsequent discrimination)	Discriminatory pricing, 1921 claim denials, denial of coverage	5.3
Real estate developers (massacre site, freeway corridor, gentrification)	Displacement, inadequate compensation, Greenwood tourism extraction	2.5
TOTAL		132.9

Summary of the Case: The Verdict the Evidence Demands

The Record Is Clear

Every harm documented in this brief is supported by government records, federal DOJ investigations, court decisions, academic research, EPA Superfund records, Human Rights Watch reports, NAACP LDF findings, Brookings Institution analyses, and community testimony. This is not advocacy built on grievance — it is a legal brief built on evidence. The 1921 massacre alone is the most documented act of racial destruction in American history.



The Law Is Clear

Unjust enrichment, tortious harm, constitutional violation, statutory civil rights violation, and international human rights law all converge on the same conclusion: the debt is real, current, and legally enforceable — confirmed most recently by the DOJ's 2023 finding of active redlining in Tulsa and by the documented pattern of racially disparate policing confirmed by multiple independent investigations.

The Amount Is Clear

The Negro Research Institute calculates a minimum reparations obligation of \$132.9 billion — owed by federal, state, and municipal governments and by named corporate actors — to Black Tulsans and their descendants. The 2025 private trust of \$105 million represents less than 0.08% of this obligation.



The Time Is Now

The harm is ongoing. The gentrification displacing Black residents is happening today. Industrial corridor contamination remains in North Tulsa today. Active mortgage redlining was federally confirmed in 2023. The last known massacre survivors lived and died without government compensation. The obligation does not expire. Tulsa has the opportunity to lead the nation toward justice. The question is whether it has the will.

The Closing Argument: For the Record, for the World

Submitted by the Negro Research Institute

We have presented the evidence. We have named the perpetrators. We have calculated the damages. We have identified the legal remedies. We have shown that precedent exists and that the law demands action. The case for reparations for African Americans in Tulsa, Oklahoma is not merely strong — it is **airtight**. The city that burned Black Wall Street to the ground, redlined its ruins, ran a freeway through the rebuilt community, and let its last survivors die without compensation does not get to claim innocence through the passage of time. The only question that remains is not one of law, or economics, or history. It is one of character. Will Tulsa — will Oklahoma — will America — be the kind of nation that honors its debts? The world is watching. History is recording. The verdict belongs to those who choose justice over convenience. We rest our case.